Harris County District Court

Cause No. 2026-CV-0048

Peter Morales, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	1-25-26
Counsel for defendant:	Marilyn Fox, Ashford & Lyle LLP

Defendant generally denies each and every alleagtion contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Txeas Rules of Civil Procedure.

For further answer, and without assuming any burden of proof that the law places on Plaintiff, Defendant asserts the following affirmative defenses.

First, Defendant asserts the defense of proportionate responsibility under Chapter 33 of the Texas Civil Practice and Remedies Code. The collision occurred at an intersection of two roadways, and Plaintiff's own failure to yield the right-of-way, keep a proper lookout, or obey the applicable traffic signal caused or contributed to the occurrence. Any recovery must be reduced by the percentage of responsibility attributable to Plaintiff.

Second, Defendant asserts the defense of sudden emergency. Immeditaely before the impact, a third-party vheicle entered the intersection without warning, leaving Defendant no reasonable opportunity to avoid the collision.

Third, Defendant asserts the defense of comparative negligence and failure to mitigate damages. Plaintiff failed to seek timely and reasonable medical treatment and did not take reasonable steps to minimize the claimed losses.